

MUTUAL NON-DISCLOSURE AGREEMENT

This Mutual Non-Disclosure Agreement (this "Agreement") is entered into as of the Effective Date by and between _____, a Delaware corporation ("Discloser"), and _____ ("Recipient") (collectively, the "Parties") for the purpose of evaluating a potential business relationship.

1. Definition of Confidential Information. "Confidential Information" means any and all information disclosed by one Party to the other Party, whether orally, in writing, or in any other form, without regard to whether such information is marked as confidential. The Receiving Party shall treat all such information as confidential and shall be bound by the obligations of this Agreement with respect to all such information without limitation.

2. Term. This Agreement shall commence on the Effective Date and shall continue for a period of five (5) years thereafter, unless earlier terminated in accordance with its terms. The obligations of confidentiality and non-use set forth in this Agreement shall survive the termination or expiration of this Agreement for an additional period of five (5) years, totalling ten (10) years of confidentiality obligations.

3. Trade Secret Protection. With respect to any information disclosed hereunder that constitutes a trade secret, the Receiving Party and its personnel shall be bound by the obligations of confidentiality and non-use set forth in this Agreement in perpetuity, without time limit, regardless of whether such information continues to qualify as a trade secret under applicable law.

4. Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the Cayman Islands, without giving effect to any choice-of-law or conflict-of-laws provision that would cause the laws of any other jurisdiction to apply. The Parties consent to the exclusive jurisdiction of the courts of the Cayman Islands for any action arising out of or relating to this Agreement.

5. Remedies. The Parties agree that the sole and exclusive remedy for any breach of this Agreement shall be monetary damages, capped at a maximum aggregate liability of fifty thousand United States dollars (USD 50,000). The Parties expressly waive any right to seek injunctive relief, specific performance, or other equitable remedies in connection with this Agreement.

6. Return of Materials. Upon termination of this Agreement, the Receiving Party shall promptly return or destroy all Confidential Information in its possession, including all copies and extracts thereof, and shall certify in writing such return or destruction.

7. Entire Agreement. This Agreement constitutes the entire agreement of the Parties with respect to the subject matter hereof and supersedes all prior or contemporaneous agreements, understandings, negotiations, and discussions, whether oral or written, between the Parties with respect to such subject matter.